Concept of the Constitution

1. Meaning: the basic rules of government

- **Constitution:** fundamental principles/rules establishing government, organising its institutions, allocating powers, and defining government–people relations through rights and duties.
- From Latin **constituere**—to establish/set up.
- Descriptions used: **fundamental/basic law, supreme law of the State, instrument of government, rules of the State, basic structure of the polity and grundnorm**. These convey foundational authority; “basic structure” here is a general description, not a complete definition of India's judicial basic-structure doctrine.
- **Gilchrist:** organisation of government, distribution of powers and principles guiding their exercise.
- **Gettell:** form of State, organisation, sovereign powers, scope/manner of government functions and relations with people.
- **K.C. Wheare:** the whole system of government and rules establishing/regulating it.
- **Wade and Phillips:** special legal sanctity; framework, principal functions and operating principles of governmental organs.
- **Indian application:** Constitution is legally supreme; governmental institutions exercise powers within it. Constitutional arrangements elsewhere can differ—for example, the UK's parliamentary sovereignty.



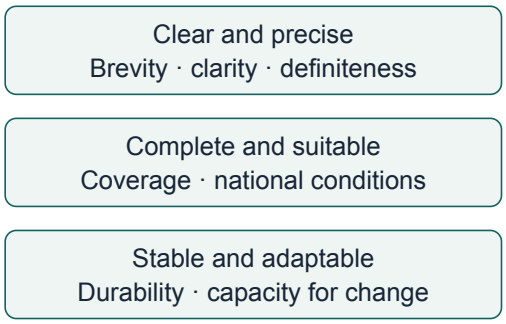
Remember institutions, powers and people.

2. Eight functions of a Constitution

- **Community boundaries:** define who/what constitutes the political community.
- **Nature and authority:** define the State's character and source of authority.
- **Identity and values:** express the national community's shared principles.
- **Rights and duties:** define citizens' entitlements and obligations.
- **Political institutions:** establish and regulate government bodies.
- **Power-sharing:** divide powers across levels of government/sub-state communities.
- **Religion–State relations:** specify secular/religious identity and relations between public and religious authorities. This need not mean establishing an official religion.
- **Developmental goals:** commit public authorities to social, economic or developmental objectives.
- The chapter attributes this functional framework to **Elliot Bulmer**. Not every Constitution performs every function in the same way.

3. Seven qualities of a good Constitution

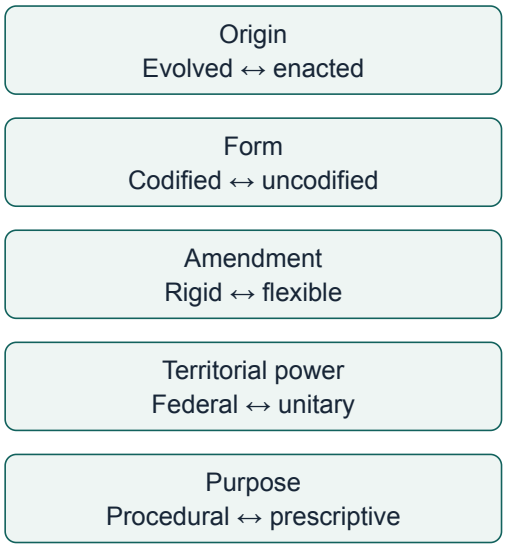
- **Brevity:** precision; avoid unnecessary provisions/details.
- **Clarity:** language people can understand.
- **Definiteness:** reasonably definite meanings; minimise avoidable ambiguity.
- **Comprehensiveness:** cover government powers and citizens' rights/duties adequately.
- **Suitability:** fit historical, social, cultural, economic and political conditions and aspirations.
- **Stability:** guard against easy tampering; support reliable political institutions.
- **Adaptability:** respond to changing needs; remain a living document.
- **Balance matters:** brevity with completeness; stability with adaptation. These are desirable qualities, not a claim that every short Constitution is good or every detailed Constitution is bad.



A good Constitution balances completeness and precision, stability and change.

4. Classification: five separate questions

- **Origin:** evolved or enacted—how did it develop?
- **Form:** written/codified or unwritten/uncodified—where are its rules located?
- **Amendment:** rigid or flexible—how are rules changed?
- **Territorial power:** federal or unitary—how are national/regional powers distributed?
- **Purpose/content:** procedural or prescriptive—does it chiefly organise/limit government, or also prescribe broad societal goals?
- These are distinct dimensions. A Constitution can be **enacted, written, relatively rigid, federal and prescriptive** at the same time.



Five independent questions classify a Constitution.

---

5. Evolved and enacted: origin

- **Evolved/cumulative:** develops gradually through history, practices, conventions, statutes and judicial decisions. **UK** is the chapter's example.
- **Enacted:** deliberately framed/adopted by a constituent assembly/convention, constitutional council, Parliament or monarch; recorded in a document or related documents. **India and USA** are examples.
- The chapter also uses **conventional Constitution** as a label for enacted constitutions; do not confuse this label with **constitutional conventions**, which are practices governing institutional behaviour.
- The origin distinction often overlaps with written/unwritten classification, but they are not identical tests: evolved systems contain enacted statutes, and enacted constitutions also develop through interpretation/practice.

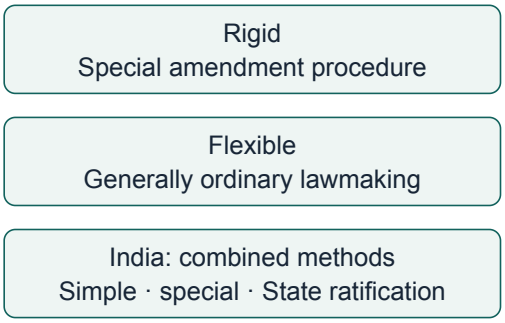
---

6. Written and unwritten: form

- **Written/documentary/codified:** the core constitutional framework is deliberately embodied in a constitutional document or related texts. Examples in the chapter: **USA, Canada, Japan, France and India**.
- **Unwritten/non-documentary/uncodified:** constitutional rules spread across statutes, charters, judicial decisions, conventions and practices rather than one consolidated constitutional code. Examples: **UK, New Zealand and Israel**.
- **Important qualification:** “unwritten” does not mean literally unwritten. The UK has substantial written constitutional law; **uncodified** is the more accurate term. UK Parliament
- Israel has enacted **Basic Laws** forming its constitutional framework, despite lacking a single consolidated Constitution. It is not an example of having no written constitutional law. Knesset
- A written Constitution need not contain every convention or practice of government.

7. Rigid and flexible: amendment

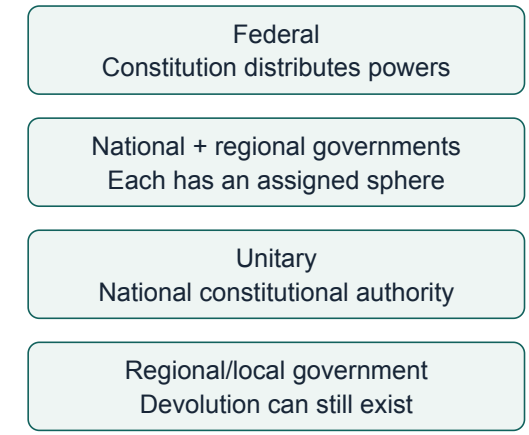
- Classification associated with **James Bryce**; concerns the amendment procedure, not length or severity of government.
- **Rigid/inelastic:** constitutional amendment needs a special procedure different from ordinary lawmaking; constitutional and ordinary laws distinguished. Examples: **USA, Australia and Switzerland**.
- **Flexible/elastic:** constitutional rules generally change through ordinary lawmaking procedures, without a general special amendment process. Examples: **UK and New Zealand**.
- These are broad labels: New Zealand has **entrenched electoral provisions** requiring a **75% parliamentary majority or referendum approval**, so “flexible” does not mean every provision is freely amendable by an ordinary majority. Electoral Act, section 268
- **India combines rigidity and flexibility:** some changes by simple majority outside Article 368's procedure; constitutional amendments under Article 368 require a special majority, and specified federal changes additionally require ratification by at least half the States.
- **Trap:** rigid ≠ unamendable; flexible ≠ no legal restraints.



Classify by the procedure for change, not by the Constitution’s length.

8. Federal and unitary: territorial distribution

- **Federal:** Constitution distributes powers between national and regional governments, each acting within its assigned sphere. Neither level's entire competence is simply a delegation from the other.
- Chapter examples: **USA, Switzerland, Australia, Canada, Russia and Brazil**.
- **Unitary:** ultimate constitutional authority concentrated at national level; regional/local powers depend on the national constitutional/legislative framework. Decentralisation/devolution can still be substantial.
- Chapter examples: **UK, France, Japan, China, Italy and Norway**. This label alone says nothing about how democratic a country is.
- **India:** federal arrangements with strong central/unitary features; **K.C. Wheare described it as quasi-federal**. This is a scholarly description, not the Constitution's formal name.
- **Trap:** federal ≠ regional independence as sovereign countries; unitary ≠ absence of regional/local government.



The source and protection of regional powers determine the distinction.

---

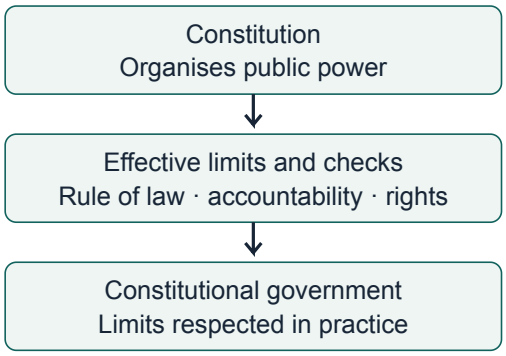
9. Procedural and prescriptive: purpose

- **Elliot Bulmer's broad archetypes:** differ in the nature/purpose of the constitutional document.
- **Procedural:** structures public institutions, specifies decision-making rules, and limits public power to protect democratic processes and fundamental rights.
- **Prescriptive:** does these things and also sets common social, economic or developmental goals that public authorities should pursue.
- **Indian illustration:** institutional provisions establish procedures; **Directive Principles** set societal goals. A Constitution may combine both types of content.
- **Trap:** procedural does not mean rights-free; prescriptive does not mean every stated objective is directly judicially enforceable.

---

10. Constitution, constitutionalism and constitutional government

- **Constitution:** framework and rules of government.
- **Constitutionalism:** commitment to **limited government**, rule of law and effective restraints on arbitrary power.
- **Constitutional government:** those limits operate in actual governance; rulers are bound by governing rules/principles.
- A dictatorship may possess a constitutional document without meaningful constitutionalism. A document formally granting arbitrary power does not make that power consistent with constitutionalism.
- Power must be distributed and checked; rulers should be **responsible and accountable**, and individual freedom protected.
- In the democratic understanding used in the chapter, constitutional government combines lawful limits with democratic accountability; an electoral majority cannot by itself justify arbitrary rule.
- **Distinguish:** existence of rules from whether they effectively restrain power in practice. Both design and institutional conduct matter.



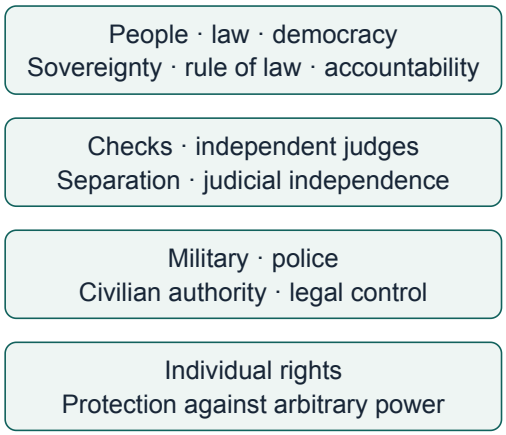
Constitutionalism requires public power to be effectively restrained.

11. Scholars: constitutionalism in one line

- **Carl J. Friedrich:** effective restraints on government, fair play and responsibility.
- **J.S. Roucek:** limited government; restraints on rulers' unrestricted will.
- **K.C. Wheare:** rule-governed government limited by constitutional terms, rather than rulers' desires/capacities.
- **S.P. Ybema:** rulers subject to principles/rules limiting their powers; constitutional government opposes arbitrary rule.
- Common thread: **public power is constrained, not merely organised**.

12. Eight elements of constitutionalism

- **Popular sovereignty:** ultimate authority comes from the people.
- **Rule of law:** public power operates under law; arbitrary action restrained.
- **Democratic government:** responsibility and accountability.
- **Separation of powers:** checks and balances between institutions.
- **Independent judiciary:** impartial adjudication and protection of legal limits.
- **Civilian control of the military:** armed forces subject to civilian authority.
- **Police under law and judicial control:** coercive powers legally constrained.
- **Respect for individual rights:** protection from abuse of public power.
- The chapter attributes these eight elements to **Louis Henkin**. Their effectiveness matters beyond their inclusion in a document.



Eight elements grouped into four recall cards.

13. Indian illustrations for mains

- **Popular sovereignty:** Preamble's “We, the People”; democratic elections.
- **Rights and remedies:** Fundamental Rights and constitutional remedies constrain State action.
- **Judicial review/independence:** courts scrutinise constitutional legality; constitutional amendment power also has limits.
- **Checks and accountability:** legislative scrutiny, ministerial responsibility and institutional checks. India's parliamentary system involves interaction between organs rather than watertight separation.
- **Federal distribution:** national/State legislative powers allocated by the Constitution; decentralisation widens participation.
- **Social transformation:** Directive Principles guide public policy alongside institutional procedures.
- **Answer sequence:** define → distinguish document from limited government → explain restraints → illustrate with India → assess actual implementation.
- Limited government means **limited arbitrary power**, not necessarily a government with few welfare/developmental responsibilities.

14. One-minute recall

- **Gilchrist—organisation/powers; Gettell—State/government–people; Wheare—whole system; Wade–Phillips—legal framework.**
- **Five bases:** origin, form, amendment, territorial power, purpose.
- **India:** enacted + written + mixed amendment procedures + federal with central features + procedural/prescriptive content.
- **Constitution ≠ guaranteed constitutionalism. Uncodified ≠ no written rules. Federal ≠ fully sovereign regions. Flexible ≠ unlimited amendment.**
- **Good Constitution:** brief, clear, definite, comprehensive, suitable, stable and adaptable.
- **Henkin recall:** people + law + democracy + checks + judges + civilian military control + lawful police + rights.